

In *Cansino*, homeowners sued their mortgage lending, alleging that they had represented that plaintiffs' property was appreciating and that plaintiffs could obtain several years of appreciation in their property so that they could sell or refinance before having to make higher monthly payments. (*Id.* at 1469.) The court noted that "the actionable nature of some statements may not readily be determined on demurrer. [Citation.] But plaintiffs provide no authority for their position that a prediction about future market conditions constitutes an actionable misrepresentation, and we have found none." (*Id.* at 1470.)

Here, Plaintiffs allege that at the sales conference, a representation acting at Tuemmler's direction, "presented projections of substantial new business and strong revenue for upcoming quarters". (FAC ¶68.) She "represented robust bookings and strong cash flow for upcoming quarters." (FAC ¶22.) The representative also made "statements regarding Infotechtion US's financial condition, projected revenues, and ability to pay its obligations." (FAC ¶73.)

These allegations are sufficient to go beyond predictions regarding future events. Allegations of "robust bookings" is an allegation based on present facts. Further a "strong cash flow" may be somewhat based upon predictions of future events, but it is also based upon the current state of the company and what bookings and unpaid invoices looked like, which are based on current facts. Overall, the Court finds that the allegations are sufficient to show actionable misrepresentation.

Defendant also argues that the partnership had a right to inspect the US Company's books and therefore there can be no fraud claims. This argument is not supported by legal citations and is not persuasive in any event.

Defendant also cites law regarding what must be alleged to state a claim for fraud against a corporate entity, but only the individual defendant is sued in these claims.

Judicial Notice

The Court takes judicial notice that the Certificate of Incorporation of Infotechtion International, Ltd., which shows a date of incorporation of November 27, 2023, because it is unopposed and appears to be a matter not reasonably disputed by the parties. (Evidence Code section 452(h).)

8. 9:00 AM CASE NUMBER: MSC18-02438
CASE NAME: 88/12 LLC VS GARAVENTA
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: 88/12 LIMITED PARTNERSHIP BY AND THROUGH ITS GENERAL PARTNER, 88/12 LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
TENTATIVE RULING:

This matter has been removed from calendar as judgment was previously entered.

9. 9:00 AM CASE NUMBER: MSC20-00628
CASE NAME: RISOFTEDEV VS CHATFIELD

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM BRIAN MARSHALL
FILED BY: RISOFTEDEV INC**

TENTATIVE RULING:

Plaintiff RisofteDev Inc. has moved to compel further responses to requests for production of documents from Defendant Brian Marshall. Defendant filed a 48 page opposition. He did not comply with California Rule of Court 3.1113(d). Nor did he provide an opposition separate statement, which is what his brief is attempting to mimic, in part. The Court will not consider the overlong brief past page 15.

What is evident in the first 15 pages is that Defendant failed to comply with his discovery obligations. Counsel did not respond to any meet and confer attempts, and did not make a good faith attempt to respond to discovery. Plaintiff provided a declaration outlining a one-sided attempt to meet and confer, and Defendant did not rebut that with any declaration at all. Moreover, while some document requests may be capable of overbroad interpretations, the obligations do not stop there. They must produce relevant responsive documents that are within the scope of the request, while rightfully refusing to produce non-relevant or privileged documents, and explaining the process. Moreover, Defendants cannot decline to produce documents based on a professed misunderstanding of basic terms without offering their own definition and producing documents consistent with that definition. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”)

Plaintiff’s motion is granted. The court orders sixty days to comply with this order. Defendant Brian Marshall shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Requests for Production of Documents – Set One.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Cal. Code of Civ. Proc. § 2023.020 states that the Court “**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” In this case, in light of everything discussed above, Sanctions in the amount of \$3,500 are granted and payable by Defendant within 20 days of service of this order.

10. 9:00 AM CASE NUMBER: MSC20-00628

CASE NAME: RISOFTEDEV VS CHATFIELD

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES (JARED OWENSBY)**

FILED BY: RISOFTEDEV INC

TENTATIVE RULING: